

An Act

ENROLLED SENATE
BILL NO. 1307

By: Daniels of the Senate

and

Lepak and Hill of the House

An Act relating to the Oklahoma Historical Society; amending 53 O.S. 2021, Sections 1.18, 171, and 201C, as amended by Section 1, Chapter 213, O.S.L. 2022 (53 O.S. Supp. 2025, Section 201C), which relate to the dispensation of funds; removing certain prohibition on use of funds; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Oklahoma Historical Society

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 53 O.S. 2021, Section 1.18, is amended to read as follows:

Section 1.18. The Oklahoma Historical Society shall dispense funds for historical purposes only as ~~defined~~ provided by paragraph 6 of Section 6 of this act the Oklahoma Historical Preservation Act. The Oklahoma Historical Society may enter into contracts with other state agencies or nonprofit corporations holding a valid exemption from taxation issued pursuant to Section 501(a) of the Internal Revenue Code of 1986, as amended, and listed as an exempt organization in Section 501(c)(3) of the Internal Revenue Code of 1986, ~~of the United States~~, as amended, or with individuals or associations pursuant to statutory requirements.

~~Funds shall not be applied, donated or used directly or indirectly for the use, benefit or support of any sect, church,~~

~~denomination or system of religion, or for the use, benefit or support of any priest, preacher, minister, or other religious teacher or dignitary, or sectarian institution as such.~~

The Oklahoma Historical Society shall provide opportunity to organizations to submit written applications to be received and acted upon by the Oklahoma Historical Society. At the conclusion of the contract, each state agency, nonprofit corporation, individual, or association shall provide the Oklahoma Historical Society with proof of fulfillment of the contract in proper order and ~~must~~ shall be affirmed on the proper form, provided by the Oklahoma Historical Society, by the managing officers of the state agency, nonprofit group, association, or individual making the contract.

SECTION 2. AMENDATORY 53 O.S. 2021, Section 171, is amended to read as follows:

Section 171. The Oklahoma Arts Council shall dispense funds for arts purposes only. The Oklahoma Arts Council shall enter into contracts with other state agencies or nonprofit corporations holding a valid exemption from taxation issued pursuant to Section 501(a) of the Internal Revenue Code, ~~1954~~ of 1986, as amended, and listed as an exempt organization in Section 501(c)(3) of the Internal Revenue Code, ~~1954, of the United States~~ of 1986, as amended. These nonprofit corporations must demonstrate that the goods and services provided meet the intent of the state policy provided in ~~this act~~ Section 162 of this title.

~~Funds shall not be applied, donated or used directly or indirectly for the use, benefit or support of any sect, church, denomination or system of religion, or for the use, benefit, or support of any priest, preacher, minister, or other religious teacher or dignitary, or sectarian institution as such.~~

The Oklahoma Arts Council shall provide opportunity, by public notices, to all organizations interested in providing these goods and services, who will submit written applications to be received and acted upon by the Oklahoma Arts Council. At the conclusion of the contract, each state agency or nonprofit corporation shall provide the Oklahoma Arts Council with proof of fulfillment of the contract in proper order and ~~must~~ shall be affirmed on the proper

form, provided by the Oklahoma Arts Council, by the managing officers of the state agency or nonprofit group making the contract.

SECTION 3. AMENDATORY 53 O.S. 2021, Section 201C, as amended by Section 1, Chapter 213, O.S.L. 2022 (53 O.S. Supp. 2025, Section 201C), is amended to read as follows:

Section 201C. A. The J.M. Davis Memorial Commission shall have power and authority to:

1. Appoint and to fix the salaries and duties of the professional and administrative employees and curators as may be necessary to carry out the purpose of ~~this act~~ 201A et seq. of this title;

2. Appoint an executive director who shall serve at the pleasure of the Commission. A member of the Commission may be appointed as the executive director; provided, if a member of the Commission is so appointed, the member shall resign as a member of the Commission and the vacancy shall be filled in the same manner as are original appointments;

3. Provide for the proper housing, protection and display of the J.M. Davis Gun Collection and other historical artifacts; and

4. Enter into contracts for services to be performed in furtherance of the authorized activities and duties of the J.M. Davis Memorial Commission with other state agencies or nonprofit corporations holding a valid exemption from taxation issued pursuant to Section 501(a) of the Internal Revenue Code of 1986, as amended, and listed as an exempt organization in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended, or with individuals or associations pursuant to statutory requirements.

~~B. Funds of the J.M. Davis Memorial Commission shall not be applied, donated, or used directly or indirectly for the use, benefit, or support of any sect, church, denomination, or system of religion, or for the use, benefit, or support of any priest, preacher, minister, or other religious teacher or dignitary, or sectarian institution as such.~~ The J.M. Davis Memorial Commission shall provide opportunity to organizations to submit written applications to be received and acted upon by the J.M. Davis

Memorial Commission. At the conclusion of the contract, each state agency, nonprofit corporation, individual, or association shall provide the J.M. Davis Memorial Commission with proof of fulfillment of the contract in proper order and ~~must~~ shall be affirmed on the proper form, provided by the J.M. Davis Memorial Commission, by the managing officers of the state agency, nonprofit group, association, or individual making the contract.

C. Any agreements or contracts providing for the employment of persons or to purchase property or equipment or the construction of any facilities shall not be authorized unless necessary funds have been appropriated by the Legislature or have been otherwise obtained from gifts, grants or contributions actually received by the Commission.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 23rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____